

Subject Code	AF5512
Subject Title	The Legal System and Economic Law in China
Credit Value	3
Level	5
Normal Duration	One Semester
Pre-requisite/ Co-requisite/ Exclusion	Exclusion: The Legal System and Economic Law in the PRC (AF5501)
Objectives	The first part of the course introduces to the students a knowledge and understanding of China's basic legal framework and institutions. Comparison of the Chinese legal system with other common law jurisdictions such as Hong Kong will be made whenever appropriate. The second part of the course focuses on the legal aspects of the elements that make up a market-based economy. This subject contributes to the achievement of Programme Outcomes by enabling students to apply appropriate conceptual frameworks <u>to understand the current legal development of Chinese business environment and the factors determining the likely directions for its future (Programme Outcome 3).</u>
Intended Learning Outcomes	Upon completion of the subject, students will be able to: - Identify and explain the main features of China's legal system; - Critically evaluate China's ongoing legal reform, substantive laws, and ethical issues relevant to the country's market-based economic development and 'Open Door' policy; - Effectively compare China's legal system with other common law jurisdictions such as Hong Kong, and be able to suggest improvements and reform of both the existing legal system and specific substantive laws and to suggest the nature of new laws necessary to fill lacunae in China's existing legal framework; - Identify and explain Fintech regulations in China.

Subject Synopsis/ Indicative Syllabus	The Chinese Legal System Organs and process of law-making at central and local levels; the court and trial system; judges, lawyers and constitutional provisions. A Comparative Overview of the Chinese and Common Law Systems From a comparative perspective, China's legal system and common law jurisdictions such as Hong Kong. Laws Relating to Property Right, Contract, and Functioning of the Market The notion of property rights; freedom of contracts; anti-fraud; property law; contract Law; intellectual property law; product and consumer law. Laws Relating to Foreign Investment Forms of foreign investment: equity joint ventures, contractual joint ventures, wholly-owned foreign enterprises; the impact of WTO membership on foreign investment in China; establishment procedures; organizational structures; capital contribution and profit distribution; area of business, duration and termination. Law Relating to Domestic Business and Entrepreneurship Law of domestic business organizations: limited liability company and company limited by shares, partnerships; competition law. Legal Aspects of China's Foreign Trade Foreign trade regulation; impact of WTO membership; the opening of China's domestic market. Law Relating to Business Finance China's banking system; banks with foreign investment; raising capital from the stock market; regulation of the financial system; Fintech regulations in China. Alternative Dispute Resolution Adjudication; mediation; conciliation; arbitration involving foreign parties; arbitration organs and proceedings; enforcement of arbitral awards.
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Teaching/ Learning Methodology	The subject consists of lectures and seminars. Students are required to do projects on issues for presentation and discussion in class.							
Assessment Methods in Alignment with Intended Learning Outcomes	Specific assessment methods/tasks	% weighting	Intended subject learning outcomes to be assessed (Please tick as appropriate)					
			a	b	c	d		
	<u>Continuous Assessment</u>	50%						
	1. Class participation	10%	✓	✓	✓	✓		
	2. Group project	20%	✓	✓	✓	✓		
	3. Mid-term test	20%	✓	✓	✓	✓		
	<u>Final Examination</u>	50%	✓	✓	✓	✓		
	Total	100 %						
	<i>Note: The specific requirements on individual assessment components discussed above could be adjusted based on the pedagogical needs of the subject lecturer(s).</i>							
Student Study Effort Expected	Class contact:							
	▪ Lectures / Seminars						39 Hrs.	
	Other student study effort:							
	▪ On average students are expected to spend around 2 more hours for each contact hour for reading and subject materials/textbook, doing discussion questions and assignments.						78 Hrs.	
	Total student study effort						117 Hrs.	
Reading List and References	Topic-specific academic journal articles designated by the lecturer.							